

1806
Nov. 7

breache of the peace, therefore no Cause to binde any to the peace. He acquytted the Lo. Admirall, & that he had done honorablie & discreatelye. & he acquytted all the reste for the firste ryote, but he Could not acquite nor condemne them for the seconde ryote, because it could not appeare vnto them in iudgemente whether it were an auneyente lodge or no, nothings beinge mencyned wthin the bookes [depositions], (wherevpon they must onelye iudge), Concerninge the same.

Coke, C. J.

‘The Lo. Ch. Justice Koke agreeed that the Lo. Admirall was not to be touchte wth any procuremente, nor any other, for the firste ryot: for the Lo. Admirall gaue a lawfull Commaundmente, & yf his seruaunte execute vnlawfullie, that shall not Charge him: but otherwyse it is of an vnlawfull Commaundemente, as I Commaunde my seruaunte to beate one, & he beatethe him vntill he kill him, this ys my faulte. The Ladye Russelle ys the Lo. Admirall’s seruaunte, & keper of his howse; yf he or his seruauntes breake the lockes or doores, it is noe wronge, for she hathe but the bare Custodie, for him & not againste him; & she hathe noe intereste, yf there be not an auntiente kepershippe & lodginge appurteigninge to that; for a Freeholde maye appurteigne to an office, as to the Fleete: but she hathe her salarie for her keepinge, 2^d ob. [2½d.] *per diem*, & shee ys *servus servi*.’ A man grants the keepership of a house or park, and the grantor destroys the house, or destroys the park, or disparks it, where is the keepership? *Erubescimus sine lege loqui*. 7 Edward VI., in Dier.¹

‘He Commended Dolman, the Justice of peace, & he did very discreatelye, for he had done iniustice yf he had graunted restitucion. A Justice of peace ys not bounde to gyue restitucion, but he maye yf he will: & so he freede him wth Commendacion *a poena et culpa*.

[p. 291]

‘For the 2^d ryote. for there number, there were 17; for there weapons, they had swordes & other weapons of offence; they vsed ill wordes, “kill them & hocke them”;

¹ Apparently the case of Lord Hil, 6 & 7 Edw. VI.; Dyer’s Reports, Willoughby v. Foster is referred to, i. fo. 80 b.